

Court No. - 39

Case :- WRIT - C No. - 33487 of 2018

Petitioner :- Bashu Gupta

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anjani Kumar

Raghuvanshi, Shikhar Awasthi

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble B. Amit Sthalekar, J.

Hon'ble Surya Prakash Kesarwani, J.

Heard Sri Shikhar Awasthi, learned counsel for the petitioner, Sri Mahboob Ahmad, learned counsel for the respondents no.2 & 3 and the learned standing counsel for the respondents no.1 & 4.

The petitioner in the writ petition is seeking quashing of the recovery challan dated 10.01.2018 and 21.05.2018. His short contention is that he was earlier sent a bill of Rs.30,000/- for Electricity Connection No.5014761106, which has been paid by him. Subsequently he was sent another bill of Rs.1,64,747/- with regard to the Electricity Connection No.1536661787. He submits that after filing of the writ petition he has received another bill of about Rs.2,00,000/- with regard to the Electricity Connection No.1536661787.

The contention of the petitioner is that his Electricity Connection Number is 5014761106 and not Electricity Connection No.1536661787.

The matter requires consideration.

Sri Mahboob Ahmad, learned counsel for the respondents no.2 & 3 shall obtain instructions in the matter specifically with regard to the averments of paragraph 14 of the writ petition.

Put up on 11.10.2018, as fresh.

Till then no coercive steps shall be taken against the petitioner in pursuance of the impugned recovery challan dated 10.01.2018 and 21.05.2018.

Order Date :- 4.10.2018

N Tiwari

Court No. - 39

Case :- WRIT - C No. - 33487 of 2018

Petitioner :- Bashu Gupta

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anjani Kumar Raghuvanshi, Shikhar Awasthi

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble B. Amit Sthalekar, J.

Hon'ble Surya Prakash Kesarwani, J.

Sri Shikhar Awasthi, learned counsel for the petitioner submitted that the counter affidavit has not been filed till date.

Counsel for the respondents prays for some more time for filing counter affidavit.

Respondent may file counter affidavit by 26.10.2018.

Put up as fresh on **26.10.2018**.

Interim order, granted earlier, is extended till the next date of listing.

Order Date :- 11.10.2018

Nitin Verma

Court No. - 39

Case :- WRIT - C No. - 33487 of 2018

Petitioner :- Bashu Gupta

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anjani Kumar Raghuvanshi, Shikhar Awasthi

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble B. Amit Sthalekar, J.

Hon'ble Surya Prakash Kesarwani, J.

Heard Sri Shikhar Awasthi, learned counsel for the petitioner, Sri F.A. Ansari, learned counsel for the respondents no. 2 & 3, and learned standing counsel for the respondents no. 1 & 4.

The Petitioner in the writ petition is seeking quashing of the recovery challans dated 10.01.2018 and 21.05.2018. His contention is that earlier he was sent a bill of Rs.30,000/- for Electricity Connection No.5014761106 which has been paid by him. Subsequently, he was sent another bill of Rs.1,64,747/- with regard to the Electricity Connection No.1536661787 and the bill as of now is about Rs.2,00,000/-. His contention is that he does not have any Electricity Connection No.1536661787.

We had directed the learned counsel for the respondents to obtain instructions in the matter and Sri F.A. Ansari on instructions received informs that earlier the petitioner had Electricity Connection No.5014761106 against which he has also paid the amount of Rs. 30,000/-. Though an account was created but the meter was not installed and at the time meter was installed the Electricity Connection number was changed to No.1536661787.

Sri Ansari further informs that after the previous order of this Court dated 4.10.2018 the Executive Engineer has already decided the matter and informed the petitioner about it through his letter dated 24.10.2018. However, we find that such decision would have been taken without giving the petitioner of any opportunity being heard or filing his objection as per para 6.5 of the Electricity Supply Code, 2005.

Be that as it may, the petitioner is aggrieved by the Bill in respect of the Electricity Connection No.1536661787. He has liberty to file objections before the Executive Engineer in terms of Para 6.5 of the Electricity Supply Code, 2005. We, therefore, **dispose** of this petition with liberty to the petitioner to approach the Executive Engineer (respondent no.3) within one week from today with his objections and if such an objection is filed the respondent no.3- Executive Engineer shall decide the same within a further period of 15 days. Till such decision is taken it is provided that no coercive action shall be taken against the petitioner in respect of the impugned challans.

Order Date :- 26.10.2018/vkg